

File No.: EXP202204794

SANCTION PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 11/04/2022, a written complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant), through which a complaint is made against CLUB VOLEIBOL ***CLUB.1 with NIF G67697904 (hereinafter, the respondent) for a possible breach of the provisions of personal data protection regulations.

The reasons for the complaint are as follows:

The complainant states that he is the father of three minors and that two of them have been enrolled by the minors' mother, without consulting or agreeing on this enrollment with the complainant, in the complained Club.

On 16/02/2022, he was added to the WhatsApp Group of the club's young players in which one of his children was registered, but on 28/02/2022, he was excluded from it.

Despite having provided his phone number to be re-added to the Group that serves as communication with the parents of the minors, his access to it has been restricted. He has also not been added to the WhatsApp Group of cadets in which his other two children are registered.

Furthermore, the respondent has published images on its social media of at least one of his children, without having obtained his consent, relying solely on the mother's consent, which he considers insufficient.

On the other hand, he has requested access to the registration file of the minors and the consent form for the processing of their data. In this regard, the respondent, on 03/04/2022, replied that the requested documentation is accessible through the minors' mother, who acts as their spokesperson with the Club and referred him to her to request it, understanding the complainant that the response is inadequate and contrary to data protection regulations. He provides a copy of the emails exchanged with the respondent.

He submits, among other documents, the following:

- WhatsApp conversations in the Group "****GROUP.1" between 16/02/2022 and 28/02/2022. Several photographs are published in which one of the complainant's children appears.

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- WhatsApp conversations held between the complainant and ***PHONE.1 (mobile phone belonging to B.B.B., (...)) between 28/02/2022 and 03/03/2022.

- Copy of the Family Book and the registration certificate of the complainant and his three children.

- Copy of Judgment ***JUDGMENT.1, dated 29/04/2021, modifying custody measures for the minor children. It establishes that, as of 31/08/2021, custody of the three minors is to be shared.

- Emails exchanged between the complainant and the respondent, between 03/03/2022 and 03/04/2022, for the restoration of the right to information regarding the complainant's minor children, as well as requests for information.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 22/04/2022, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP

on 03/05/2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on 17/05/2022. In this notification, he was reminded of his obligation to communicate electronically with the Administration, and he was informed of the means of access to such notifications, reiterating that, henceforth, he would be notified exclusively by electronic means.

No response has been received to this forwarding letter.

THIRD: On 11/07/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and of

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in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

After having made a request for information to the responding party, they replied on 09/09/2022 stating that “The reason for deciding not to add or provide any information to this person is that the Club is unable to identify them in person, as they only wanted to communicate via WhatsApp or email, and obviously without knowing or identifying a person, this Club cannot allow unknown individuals into different groups where there are minors. The mother, with whom the club has dealings, is the responsible party for the three children in relation to the club and the only one who ensures that the children attend the activities and pays the corresponding fees; moreover, she is the one who does not authorize us to provide any type of information or add anyone to any group for information about her children other than herself.” They add that “the cause that has motivated the incident that led to the complaint was the Club's refusal to provide personal data of minors to a completely unknown and UNIDENTIFIED person by this Club, which had been expressly requested by the children's mother.” Furthermore, they indicate that “all the data is the minimum required by the federation to register those players and ensure they have sports insurance for their competition.” Specifically, “we handle names, surnames, addresses, contact details of parents who request them, medical data regarding injuries or illnesses that may pose a problem for sports practice, and parental authorization to publish photos of their children on social media and in messaging groups.”

They also point out that “the only person responsible for the individuals belonging to the WhatsApp groups is the president of the Club. The data provided includes training schedules or cancellations, match times and locations, and any other relevant information for the conduct of the activity. Parents also use it to share photos or videos taken during matches for all users of that group. All parents in the group are those registered in the form they fill out at the beginning of the season as responsible for those children and accept this type of arrangement for WhatsApp groups and social media.” They clarify that “in the groups, information is published freely, as this is something that the parents accepted when enrolling their children in the Club; the person responsible for ensuring that the conversations and photos are appropriate is the president of the Club, meaning that in the case of any inappropriate photo or comment, the president takes care of removing it. The only person responsible and with access to social media, Instagram, and Facebook, is the president of the club.”

In response to the second request for information made, on 10/01/2023, the responding party provided the link to the form that must be filled out to register minors in the CLUB VOLEIBOL ***CLUB.1 for the 2021-2022 and 2022-2023 seasons. Additionally, they attached the PDFs of the requested children's registrations.

FIFTH: On 30/03/2023, the Director of the Spanish Agency for Data Protection decided to initiate

sanctioning proceedings against the responding party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of the
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Articles 6.1 and 15 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.a) and b) of the GDPR.

This initiation agreement, which was notified in accordance with the rules established in the LPACAP via electronic notification, was delivered to the respondent on 30/03/2023.

SIXTH: On 14/04/2023, the respondent submitted a written statement, in due time and form, to this Agency in which it states that it is not responsible for the images published in the aforementioned group where one of the minor children of the complainant appears, as it is the parents of the other players of the Club who share the photographs. Thus, the Club only processes the personal data of the parents who have previously authorized their inclusion, as is the case here.

Furthermore, it understands that it is not necessary to obtain the consent of both parents in order to process personal data and disclose images of minors for advertising purposes, as it is not “a matter of comparable relevance to medical treatment.”

Regarding the alleged infringement of Article 15 of the GDPR, the respondent indicates that, following the initiation of this sanctioning procedure, it addressed the right of access exercised by the complainant on behalf of their three minor children. It adds that, in order to align its activities with compliance with personal data protection regulations, it has approved and disseminated the “Protocol for the Attention of Rights.”

Along with the written statement, the following documentation is attached:

- Informative clause regarding data protection signed by the parents of the minor players.
- Guide for use and good practices for the multi-platform WhatsApp.
- Protocol for the attention to the rights of the data subjects approved by the Volleyball Club ***CLUB.1.
- Copy of the email dated 13/04/2023, sent by the respondent (***EMAIL.1) to the complainant (***EMAIL.2), with the subject “Registration form and consent for data processing.”

SEVENTH: On 03/11/2023, the instructing body of the procedure agreed to open a period for evidence, considering the complaint filed by the complainant and its documentation, as well as the allegations to the initiation agreement of the present sanctioning procedure submitted by the respondent and the accompanying documentation.

EIGHTH: On 17/11/2023, the instructing body prepared a proposal for resolution in which it proposed to sanction the respondent with a fine of €1,500 and €500 for the infringements of Articles 6.1 and 15 of the GDPR, classified under Article 83.5.a) and b), respectively.

The proposal for resolution was notified to the respondent via electronic means on 20/11/2023, as evidenced by the acknowledgment of receipt in the file.

On 04/12/2023, the respondent submitted, in due time and form, a written statement of allegations to this Agency in which it reiterates what was stated in the written allegations to the initiation agreement and, in addition, indicates that at no time did the complainant show any opposition to the Club regarding the processing of the minors' data. Their request was solely focused on being re-incorporated into the WhatsApp group.

Regarding the infringement of Article 15 of the GDPR, the respondent alleges an error in the documentation attached to the written allegations to the initiation agreement where it did not include the content of the link with the registration form that was provided to the complainant in the email dated 14/04/2023.

Along with the written statement, the following documentation is provided:

- Documentation evidencing the attention to the right exercised by the complainant.
- Consents signed by the minors themselves (already 14 years old).

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: In Judgment No. ***SENTENCIA.1, dated 29/04/2021, issued by the Court of First Instance ***JUZGADO.1, the modification of measures was agreed, establishing a shared custody regime of the three minors between the complainant and their mother from 31/08/2021.

SECOND: On 27/10/2021 at 20:03 hours, the mobile number ***TELÉFONO.1, telephone line corresponding to B.B.B., (...) of the VOLLEYBALL CLUB ***CLUB.1, created the WhatsApp group "****GRUPO.1."

THIRD: On 16/02/2022 at 21:51 hours, the mobile number +***TELÉFONO.2, telephone line corresponding to the coach of the alevín category of the VOLLEYBALL CLUB CUARTE DE HUERVA, added the complainant to the WhatsApp group "****GRUPO.1." In the screenshot provided by the complainant, it is observed that the group is composed of 20 people and that the administrators are:

- ***TELÉFONO.2 (...)
- ***TELÉFONO.3 (...)
- ***TELÉFONO.1 (...)

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FOURTH: On February 17 and 19, 2022, the mobile number ***PHONE.2 (...) sent a total of 7 images to the WhatsApp group "****GROUP.1", of which 6 show the unpixelated faces of a group of minors, among whom is one of the children of the claimant.

FIFTH: On February 28, 2022, at 17:46 hours, the (...) of the VOLLEYBALL CLUB ***CLUB.1 (***PHONE.1) removed the claimant from the WhatsApp group "****GROUP.1", after sending the following message:

"Hello, good afternoon, from the club, we are reviewing the data protection rules regarding your children, given that we have already started with the matches and we will be sharing locations, photographs, videos... And seeing that there are people in the group whose children have already been withdrawn or I have no knowledge of... I will delete all unknown numbers, leaving only the numbers you provided in the registrations as legal guardians of the players. If there is anything, the responsible person who appears on the form should write to us, and we will document the changes of phone numbers and information. Best regards and apologies for the inconvenience. Att (...). D. B.B.B.."

SIXTH: Between February 28, 2022, and March 3, 2022, the claimant contacted several times via WhatsApp with the (...) of the Volleyball Club ***CLUB.1 (***PHONE.1), requesting their reinstatement to the WhatsApp group "****GROUP.1" and their inclusion in the group "...", categories in which their three minor children are registered. They sent a copy of the Family Book and the Judgment ***JUDGMENT.1.

The (...) limited themselves to responding that the mother of the minors is the only one listed on the registration form as responsible, and that this person must contact the Club to add the claimant's details as responsible and, subsequently, be able to include them in the WhatsApp groups.

SEVENTH: On March 4, 2022, at 01:09 hours, the claimant (***EMAIL.3) sent an email to the electronic address of the respondent (***EMAIL.2), with the subject "Restoration of the right to information of the minors (...)". The content is as follows:

"Good afternoon XXXX. I have not responded earlier, as I did not find your response clear. Therefore, I have requested legal consultation.

In the message to the WhatsApp group "...", of the Volleyball Club ***CLUB.1 of which I was a part, you stated: given that we have already started with the matches and we will be sharing locations, photographs, videos... And seeing that there are people in the group whose children have already been withdrawn or I have no knowledge of... I will delete all unknown numbers, leaving only the numbers you provided in the registrations as legal guardians of the players.

After being removed from the WhatsApp group "...", and in response, I provided my phone number and a copy of the documents regarding the parental authority and filiation of the minors that clearly establish that I am the LEGAL GUARDIAN OF THE MINORS. They respond that "this is from the person we have authorized as responsible,

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that right now I do not know who it is, as all the data is handled by the person we have contracted for the management.”

Your message and your response were understandable to me given the sensitivity of handling information about minors in sports clubs. Therefore, I requested the “phone number or email contact of that person and I will forward the documentation.” In response to this request, you replied, “Well, in the file, the responsible person is listed as the mother, through her is the channel for adding.”

You indicate that for him to be “Readmitted” to the WhatsApp group of (...), of which you are the administrator, the mother must consent. Both parents have shared custody and parental authority over the three minors, and we must be promptly informed and equally regarding everything related to the education and comprehensive development of the children.

Thus, I request that you restore my right to continue receiving information about the activity and sports training that the three minors are developing at the Volleyball Club ***CLUB.1 of which you are president.

In relation to XXXXXX in the WhatsApp group of “(...)”. And, regarding XXXX and XXXXXXXX, if what the children indicate is true, the Club has a WhatsApp group “(...)” where information is provided about the sports activity linked to the category in which both minors participate. In this case, please add me to the group in order to also receive sports information about XXXX and XXXXXXXX.

For all the reasons stated above, I request that my right to be promptly informed about everything related to the activity and sports training that the three minors are developing at the Cuarte de Huerva Volleyball Club be reinstated. In case of rejection and non-acceptance, please provide me with the legal grounds you deem appropriate to deny me this right.

Sincerely. Regards. XXXXXXXX.”

EIGHTH: On 04/03/2022 at 14:43 hours, the claimant party (**EMAIL.1) sent a new email to the respondent party (**EMAIL.2), with the subject “Request for documentation.” The content is as follows:

“Good morning, XXXX

Awaiting a response that I hope will be as prompt as possible, I request a copy of the registration form and the consent sheet regarding the processing of personal data and image of the minors held by the Club related to (...).

It is understood that the copy you send me must safeguard the data of third parties and of the mother. The confidentiality of the data can easily be achieved by covering such data with “Tipp-ex.”

If you do not agree to provide me with this copy, please send me the blank registration form and the consent sheet regarding the processing of personal data and image of the minors of the Club.”

NINTH: Between 07/03/2022 and 03/04/2022, the claimant party and the respondent party exchanged several emails regarding the request for information and the claimant party's participation in the WhatsApp groups.

On 03/04/2022 at 13:25 hours, the respondent party sent the following email to the claimant party:

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“Good afternoon,

As the mother of the boys has informed us, she is the one responsible for the activity, both in terms of payments and in taking them to training, etc.

She has kept us informed of everything that happens in our club, but only when you ask her about something related to the activity. So I repeat, all the documentation and information you are requesting is with the MOTHER OF THE BOYS, so I kindly ask you to speak with her, and she will provide you

with everything you are requesting.

However, she will not provide you with the documentation you are requesting; there are other legal channels, which you can pursue by filing a judicial claim before the competent authorities, and we, when the competent person with a judicial report sees that the responsible party before us does not provide what you are requesting, will gladly provide all the documentation you are asking for.

That said, and I repeat, all that documentation is simply with the mother of the boys, just as you are doing through this channel. She has informed us that she is in charge of everything regarding this activity and even informs the father of the boys.

I hope this email has resolved all your inquiries regarding all the topics to be addressed.

Best regards”

On the same day, the claiming party simply responded that, as the legal representative of the minors, they have the right to have the claimed party, responsible for data processing, provide the previously requested documentation.

TENTH: On 01/10/2023, the claimed party, in response to the information request, provided a copy of the “Registration Club Volleyball ***CLUB.1” for the 2021-2022 and 2022-2023 seasons for each of the minors. All forms contain the following information:

- Player section: personal data of the minors (name, surname, and ID number, among others).
- Mother, father, or guardian section: personal data of the mother of the minors (name, surname, and ID number, among others).
- Section “Information in compliance with personal data protection regulations”: privacy policy and specific permissions marked in relation to the three minors:
 - o I consent to my phone number being used for communication via the WhatsApp multiplatform messaging platform, thus improving the speed and effectiveness of various managements and communications.
 - o I consent to my image being used for publication through social media to promote the entity and disseminate its activities.
 - o I consent to the publication of my image on the Internet and other similar media to disseminate the activities of your entity.
 - o I consent to the use of my personal data to receive advertising from your entity.
 - o I consent to the transfer of my personal data to: (...).

ELEVENTH: On 04/13/2023, at 20:43 hours, the claimed party (***EMAIL.1) sent an email to the claiming party (***EMAIL.2), under the subject “Registration form and consent for data processing,” with the following content:

“Good afternoon, I am attaching the registration forms for (...). Additionally, I am providing the link for registration to the club. For any questions, please contact me through this medium.”

TWELFTH: It is noted that the claimed party, in its written allegations to the initiation agreement, provides the following documentation:

- Annex I, without date or signature, titled “Informative Clause on Data Protection.” Its content informs about the Privacy Policy and the specific permissions that, through a checkbox, can be marked by the parents of the players (the clauses are identical to those listed in the previous section).
- Annex II, titled “Guide to Use and Good Practices of WhatsApp Multiplatform,” without date and signed by CLUB VOLEIBOL ***CLUB.1, contains the guidelines to be followed by Club personnel for the use of WhatsApp.
- Annex III, titled “Protocol for Attention to the Rights of the Interested Parties,” informs how to exercise the rights recognized by personal data protection regulations before the claimed party.

THIRTEENTH: It is noted that the claimed party, in its written allegations to the proposed resolution, provides the following documentation:

- Annex I, titled “Response to Exercise Right of Access,” includes the document attached to the email dated 04/13/2023, sent to the claiming party with the registration forms for the 2021-2022 and 2022-2023 seasons, completed for the three minors. The personal data relating to the mother of the minors appears anonymized.
- Annex II, titled “Authorizations of (...),” with manual signatures (XXXXXX and XXXX), dated 10/18/2023. Its content includes “Information in compliance with personal data protection regulations,”

as well as "Specific permissions (all checkboxes are marked)" identical to those listed in point ten of the "Proven Facts" section.

LEGAL GROUNDS

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Competence and Applicable Regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;"

"7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law;"

In this case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, given that the respondent party collects and retains, among others, the following personal data of natural persons: name, surname, or ID number of the player. The respondent party carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

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III

Claims Made

Regarding the claims presented by the respondent party against the proposed resolution of this sanctioning procedure, a response is provided to them.

1. On the infringement of Article 15 of the GDPR.

The respondent party provides a copy of the registration form for the 2021-2022 and 2022-2023

seasons completed with the personal data of the three minors, which was attached in the email dated 04/13/2023, in which it responded to the access request from the claimant party. Additionally, it provides a link directing to a copy of the form in order to show the manner and procedure for exercising the right and duty to inform the data subjects.

In this regard, this Agency wishes to point out that, indeed, the respondent party adequately addressed the access request made by the claimant party, as the personal data of the three minors is legible in the provided registration form. The right of access exercised by the claimant party on behalf of their three children only covers the personal data of these children, making the anonymization of the data relating to the mother of the minors appropriate.

However, in accordance with Article 12.3 of the GDPR, the data controller has one month from the receipt of the access request to respond to the exercised right, without prejudice to the possibility of extending this period by an additional two months if necessary, informing the data subject of such extension. In this case, the respondent party did not adequately address the right of access exercised by the claimant party until 04/13/2023, more than a year after the request was submitted on 03/04/2022.

Therefore, this Agency dismisses this claim.

2. On the infringement of Article 6.1 of the GDPR.

The respondent party maintains what was stated in the written allegations to the initiation agreement. It adds that the processing of the personal data of the three minors is lawful, since the claimant party, as the parent of the minors, has not opposed at any time to the dissemination of images of the minors via WhatsApp. They have only expressed disagreement with being removed from the WhatsApp group "****GROUP.1".

In this regard, this Agency wishes to point out that, as indicated by the respondent party, the claimant party only shows their disagreement with being removed from the WhatsApp group to which they had access from 02/16/2022 to 02/28/2022. Evidence of this are the WhatsApp messages and emails exchanged between the parties in which the father of the three minors requests on several occasions to be reinstated in the WhatsApp group "****GROUP.1"; however, in no case does he oppose the processing of images of his children.

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While it is true that the claimant expressly stated in the complaint submitted to this Agency that they did not give their consent to enroll their three minor children in the Club and, consequently, to process their personal data; it is equally true that, based on the documentation in the administrative file, there is no record that they informed the respondent party of such opposition.

For the reasons stated, this Agency accepts the present allegation.

IV

Right of Access

Article 15 "Right of access of the data subject" of the GDPR establishes:

"1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them are being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;

g) when the personal data have not been obtained from the data subject, any available information as to their source;

h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. Where personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject submits the request by electronic means, and unless otherwise requested by the data subject, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others.”

For its part, Article 13 "Right of access" of the LOPDGDD provides that:

“1. The right of access of the affected party shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679.

When the controller processes a large amount of data relating to the affected party and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the affected party specify the data or processing activities to which the request refers before providing the information.

2. The right of access shall be deemed granted if the controller provides the affected party with a remote, direct, and secure access system to the personal data that ensures, on a permanent basis, access to the entirety. For these purposes, the communication by the controller to the affected party of how they can access that system shall suffice to consider the request for the exercise of the right as addressed.

However, the data subject may request from the controller the information referred to in the aspects provided for in Article 15.1 of Regulation (EU) 2016/679 that are not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access on more than one occasion within a period of six months may be considered repetitive, unless there is a legitimate reason for it.

4. When the affected party chooses a means other than that offered which involves a disproportionate cost, the request shall be considered excessive, and the affected party shall bear the excess costs that their choice entails. In this case, the controller shall only be required to satisfy the right of access without undue delay.”

In the present case, it is noted that on 04/03/2022, the claimant exercised the right of access on behalf of their three minor children through an email sent to the address ***EMAIL.1, in which they requested “a copy of the enrollment form and the consent sheet regarding the processing of personal data and image of the minors held by the Club concerning (...) (...)”. It was not until 13/04/2023 that the respondent party addressed the access request submitted by the claimant, sending them an email with an attachment containing the enrollment form for the 2021-2022 and 2022-2023 seasons filled out with the personal data of the three minors, except for the information related to the minors' mother, which had been previously anonymized. However, as indicated in the response of this Agency to the allegations made by the party...

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Claimed against the initiation agreement, the right of access was addressed more than a year after it was exercised.

Consequently, in accordance with the evidence available at this moment of resolution of the

sanctioning procedure, it is considered that the known facts constitute an infringement attributable to the claimed party, for violation of Article 15 of the GDPR.

V

Classification and qualification of the infringement of Article 15 of the GDPR

The aforementioned infringement of Article 15 of the GDPR constitutes the commission of the infringement classified in Article 83.5.b) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) (...)

b) the rights of the data subjects under Articles 12 to 22; (...)"

For the purposes of the statute of limitations, Article 72.1 "Very serious infringements" of the LOPDGDD indicates the following:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year statute of limitations for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k) The obstruction or hindrance or the repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679; (...)"

VI

Sanction for the infringement of Article 15 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 15 of the GDPR, allows for the imposition of a sanction of €500 (five hundred euros).

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on CLUB VOLEIBOL ***CLUB.1, with NIF G67697904, for an infringement of Article 15 of the GDPR, classified in Article 83.5.b) of the GDPR, a fine of €500 (five hundred euros).

SECOND: TO NOTIFY this resolution to CLUB VOLEIBOL ***CLUB.1.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of

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Written communication addressed to the Spanish Agency for Data Protection, submitted through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. You must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

938-21112023
Mar España Martí
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